

SEVENTH ACCOUNT AND REPORT OF CONSERVATOR; PETITION FOR ITS SETTLEMENT; FOR APPROVAL OF CONSERVATOR’S AND ATTORNEYS’ FEES AND COSTS ADVANCED; AND FOR REDUCTION OF BOND

TENTATIVE RULING: The Petition is GRANTED, including fees, with the following change to the prayer. Pursuant to the Court’s calculation, the requested mileage fees should be reduced from the \$1,311.60 requested to \$1,300.80. (See Petition at § 8, subd. (b)(ii) [120 miles x \$0.655 is \$78.60 x 6 = \$471.60).

After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial and for an Accounting in two years on May 12, 2028, at 8:30 a.m. in Dept. A. All accounting documents must be filed at least 30 days prior to the hearing. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

The court orders the bond requirement reduced to \$169,000.

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Estate of Erlinda C. Vidal

PETITION FOR TERMINATION OF THE ESTATE ON FINAL DISTRIBUTION; FOR APPROVAL OF THE FIRST AND FINAL ACCOUNT AND REPORT; FOR ALLOWANCE OF STATUTORY COMPENSATION TO ATTORNEYS AND CO-EXECUTORS; FOR REIMBURSEMENT OF COSTS ADVANCED BY CO-EXECUTORS; FOR PAYMENT OF OUTSTANDING COSTS TO ATTORNEYS; FOR PAYMENT OF POST-ACCOUNTING COSTS TO ATTORNEYS; APPROVAL OF POST-ACCOUNTING TRANSACTIONS; AND FOR AUTHORITY TO RETAIN A RESERVE FOR FINAL EXPENSES

TENTATIVE RULING: The matter is CONTINUED to July 29, 2026, at 8:30 a.m. in Dept. B to permit Executors to serve Notice of Hearing and a copy of the Petition on Rafael L. Vidal.

“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.” (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05.) Rafael L. Vidal is identified in the Petition as the bother-in-law and beneficiary of decedent. However, there is no proof of service of the Petition and Notice of Hearing on Rafael L. Vidal in the Court’s file. (See Prob. Code § 1821, subd. (b), 1822, subd. (b)(2).).

Executors are directed to serve notice of the continued hearing to all those entitled thereto and to serve the Petition on Rafael L. Vidal.

Moreover, Petitioners are urged to double check the calculations of the amounts resulting from the agreed upon 20/80 split as between Candelaria LLP and Bay Area Probate and Estate